

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 764

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO CONCEALING, HARBORING, AND SHIELDING ALIENS; AMENDING TITLE 18, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 92, TITLE 18, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE CONCEALING, HARBORING, AND SHIELDING OF ALIENS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 18, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 92, Title 18, Idaho Code, and to read as follows:

CHAPTER 92

CONCEALING, HARBORING, AND SHIELDING ALIENS

18-9201. DEFINITIONS. As used in this chapter:

(1) "Alien" means any person not a citizen or national of the United States.

(2) "Organization" is as defined in 8 U.S.C. 1101(a)(28), the immigration and nationality act, including but not limited to an organization, corporation, company, partnership, association, trust, foundation, fund, or any director, officer, or agent thereof while serving in their official capacity, and includes a sole proprietorship or group of persons, whether or not incorporated, permanently or temporarily associated together for joint action on any subject or subjects.

18-9202. PROHIBITIONS. It shall be unlawful for an organization, or any director, officer, or agent thereof, in this state to do any of the following:

(1) Conceal, harbor, or shield from detection, attempt to conceal, harbor, or shield from detection, or conspire to conceal, harbor, or shield from detection an illegal alien in any place in this state, including any building or any means of transportation, if the organization, or any director, officer, or agent thereof, knows or recklessly disregards the fact that the alien has come to, has entered, or remains in the United States in violation of federal law, including being an inadmissible alien. The provisions of this subsection shall be interpreted as being consistent with 8 U.S.C. 1324(a)(1)(A);

(2) Encourage, promote, coerce, or induce an alien to come to, enter, or reside in this state if the organization, or any director, officer, or agent thereof, knows or recklessly disregards the fact that such alien's coming to, entering, or residing in the United States is or will be in violation of federal law, including being an inadmissible alien. The provisions

1 of this subsection shall be interpreted as being consistent with 8 U.S.C.
2 1324(a) (1) (A);

3 (3) Transport, attempt to transport, or conspire to transport in
4 this state an alien in furtherance of the unlawful presence of the alien in
5 the United States if the organization, or any director, officer, or agent
6 thereof, knows or recklessly disregards the fact that the alien has come to,
7 entered, or remained in the United States in violation of federal law, in-
8 cluding being an inadmissible alien. Conspiracy to be so transported shall
9 be a violation of this subsection. The provisions of this subsection shall
10 be interpreted as being consistent with 8 U.S.C. 1324(a) (1) (A); or

11 (4) Provide, promote, or advertise shelter, financial support, or le-
12 gal assistance to an alien in this state if the organization, or any direc-
13 tor, officer, or agent thereof, knows or recklessly disregards the fact that
14 such alien's coming to, entering, or residing in the United States is or will
15 be in violation of federal law, including being an inadmissible alien.

16 18-9203. PENALTIES. (1) Any organization, or any director, officer,
17 or agent thereof, violating the provisions of section 18-9202, Idaho Code,
18 shall be guilty of a misdemeanor for each unlawfully present alien whose il-
19 legal presence in the United States and this state the organization, or any
20 director, officer, or agent thereof, is facilitating or is attempting to fa-
21 cilitate.

22 (2) Any organization, or any director, officer, or agent thereof, vi-
23 olating the provisions of section 18-9202, Idaho Code, shall be guilty of
24 a felony when the violation involves five (5) or more aliens whose illegal
25 presence in the United States and this state the organization, or any direc-
26 tor, officer, or agent thereof, is facilitating or is attempting to facili-
27 tate.

28 (3) Any organization, or any director, officer, or agent thereof, with
29 a prior conviction under section 18-9202, Idaho Code, who commits a subse-
30 quent violation shall be guilty of a felony.

31 (4) (a) Upon a finding of a first violation by a court of competent ju-
32 risdiction that an organization, or any director, officer, or agent
33 thereof, violated section 18-9202, Idaho Code, the court shall:

34 (i) Direct the applicable state, county, or municipal governing
35 body to revoke all business licenses and permits, if such exist,
36 held by the organization throughout the state for a duration of
37 one (1) year. Upon receipt of the order, and notwithstanding any
38 other law, the appropriate agencies shall immediately revoke the
39 licenses and permits held by the organization for a duration of one
40 (1) year; and

41 (ii) Impose a fine fixed by ordinance, not to exceed the sum of
42 three thousand dollars (\$3,000) for each offense and each unlaw-
43 fully present alien aided by the organization, or any director,
44 officer, or agent thereof.

45 (b) For a subsequent violation by an organization, or any director, of-
46 ficer, or agent thereof, the court shall direct the applicable state,
47 county, or municipal governing body to permanently revoke all business
48 licenses and permits, if such exist, held by the organization through-
49 out the state. Upon receipt of the order, and notwithstanding any other

1 law, the appropriate agencies shall immediately revoke the licenses and
2 permits held by the organization.

3 (5) Any conveyance, including any vessel, vehicle, or aircraft, that
4 has been or is being used in the commission of a violation of section 18-9202,
5 Idaho Code, and the gross proceeds received by any individual or organiza-
6 tion using such conveyance to commit such a violation shall be subject to
7 civil forfeiture pursuant to applicable state law.

8 18-9204. EXCEPTIONS. (1) A law enforcement agency and its officers,
9 employees, and staff operating in their official capacity, and any persons
10 or organizations hired by a law enforcement agency, may securely transport
11 an alien who is unlawfully present in the United States to any federal,
12 state, or local detention or holding facility or to any other location re-
13 quired to detain such alien or to facilitate transfer of the alien into
14 federal custody.

15 (2) Any person acting in his official capacity as a first responder or
16 as a licensed medical professional may shelter, move, or transport an alien
17 unlawfully present in the United States pursuant to state law when required
18 to provide emergency services.

19 (3) All Idaho state courts, including their staff, attorneys, and ap-
20 pointed counsel, shall be exempt from the provisions of this chapter while
21 performing official duties.

22 18-9205. ENFORCEMENT. (1) In the enforcement of this chapter, an
23 alien's immigration status shall be determined by verification of the
24 alien's immigration status with the federal government pursuant to 8 U.S.C.
25 1373(c).

26 (2) Any record that relates to the immigration status of a person is
27 admissible in any court of this state without further foundation or testi-
28 mony from a custodian of records if the record is obtained from the federal
29 government agency that is responsible for maintaining the record. A veri-
30 fication of an alien's immigration status received from the federal govern-
31 ment pursuant to 8 U.S.C. 1373(c) shall constitute proof of that alien's sta-
32 tus. A court of this state shall consider only the federal government's ver-
33 ification in determining whether an alien is lawfully present in the United
34 States.

35 SECTION 2. An emergency existing therefor, which emergency is hereby
36 declared to exist, this act shall be in full force and effect on and after
37 July 1, 2026.